

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

**2023CUOE017974: OSCAR EDUARDO GOMEZ, et al. vs PRODUCTION PLUS
PLUMBING, INC.**

09/02/2026 in Department 44

Motion for Preliminary Approval of Class Action and PAGA Settlement

Department Rules. Parties and counsel shall follow the Department 44 rules and Zoom protocols, available at <https://www2.ventura.courts.ca.gov/Courtroom/C44>.

Remote Appearances. The Court allows Zoom appearances as a courtesy to parties and counsel. The Court does not accommodate Court Call appearances. **You MUST register by 3:00 p.m. the court day before your hearing or you will be DENIED entry to the hearing:**

ZOOM Registration Link:

<https://ventura-courts-ca.zoom.us/meeting/register/iqN7uhQSQMuoqs-9TQXgEQ>

No advance notice is required to appear in person.

Tentative Rulings. Oral argument should address the tentative decision. To submit on the tentative decision, email courtroom44@ventura.courts.ca.gov before 8:00 a.m. on the hearing date, copying all other parties. Use the subject line “SUBMISSION ON TENTATIVE”, [Case Number], [Case Title] and [Party]. If not all parties submit, the hearing will proceed, and the tentative ruling may change.

The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Plaintiffs’ Motion for Preliminary Approval of Class Action and PAGA Settlement

Tentative Ruling:

The settlement’s monetary terms appear preliminarily fair, reasonable, and adequate. The settlement was reached following arm’s-length mediation and substantial informal discovery, the gross settlement represents approximately 91% of Class Counsel’s risk-adjusted valuation, the PAGA allocation represents approximately 40% of Counsel’s risk-adjusted PAGA exposure, and settlement-only class certification otherwise appears supported.

The Motion contains several deficiencies that must be addressed, however, prior to preliminary approval, as follows:

1. **Untimely Motion.** The motion was filed August 11, 2026 for hearing September 2, 2026. That filing date is exactly 16 court days before the hearing and therefore satisfies the filing period in Code of Civil Procedure section 1005, subdivision (b). The proof of service, however, reflects electronic service on Defendant on August 11. Electronic service extends a statutory period of notice by two court days. (Code Civ. Proc., §

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1010.6, subd. (a)(3)(B).) Thus, electronic service was two court days short of the required notice period.

1. **Class Notice.** California Rules of Court, rule 3.766(d), requires class notice to accurately explain the case and the procedure and consequences of exclusion, and rule 3.769(f) requires notice of the final-approval hearing to explain the settlement and the procedures for objecting and appearing. The proposed notice cannot be approved in its present form. The notice correctly identifies the Class Period as June 26, 2019 through preliminary approval and the PAGA Period as January 15, 2023 through preliminary approval. But later in the same introductory page the Class Period is stated as “July 15, 2019 to December 7, 2024” and that the PAGA Period is “May 1, 2022 to December 7, 2024.” Those appear to be remnants from another settlement form and are materially inconsistent with the Agreement and proposed order. The notice also identifies the Final Approval Hearing as occurring in Department 40 rather than Department 44. The Settlement Administrator section contains blank placeholders for the company's name, e-mail address, mailing address, telephone number, and fax number even though Phoenix Settlement Administrators has already been selected. Section 9 likewise contains the unresolved placeholder “(specify entity)'s website at (url).” Numerous deadline and hearing-date blanks also remain; those may properly be completed after the Court selects the final-approval date, but they must be completed before mailing. A corrected notice should be submitted that: (1) uses the correct Class and PAGA Periods throughout; (2) identifies Department 44; (3) provides Phoenix's full contact information; (4) completes or removes the settlement-website placeholder; (5) incorporates the Court-set response and final-approval dates; (6) accurately describes the class and PAGA releases; and (7) reflects any change resulting from Defendant's election under the escalator provision..
2. **Scope of the Release.** The PAGA release here is appropriately framed: PAGA Members release PAGA claims that were alleged or could have been alleged based on the PAGA notice, and the release expressly does not extend outside the PAGA Period. (Agreement, § 3.d.) There is, however, an ambiguity in the separate Class release. Agreement section 3.c identifies “violations of the California Private Attorneys General Act” among the released class claims and provides only that the release does not extend outside the Class Period. The Class Period begins June 26, 2019, whereas the PAGA Period begins January 15, 2023. The separate PAGA release is limited to the latter period. The proposed notice itself likewise explains elsewhere that Class Members release wage claims based on Class Period facts and PAGA penalties based on PAGA Period facts. The parties should therefore amend or clarify Agreement section 3.c so that the class release cannot be construed to release PAGA claims outside the defined PAGA Period. This should also be stated consistently in the revised notice.
3. **Escalator Clause & Truncated Class Period.** The Settlement Agreement contains an “escalator” provision that requires clarification before the Class can be finally defined for notice purposes. (Agreement, § 17.) Defendant estimates 31,272 workweeks through the February 12, 2025 mediation. If total Class Period workweeks exceed 34,399, Defendant may either increase the gross settlement pro rata for workweeks beyond the 10% threshold or elect to end the Class Period when cumulative workweeks reach 34,399,

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with no increase to the settlement. The latter election would materially alter the Class Period after the Court has provisionally certified a class extending through preliminary approval. The proposed order, by contrast, unconditionally defines the Class Period as June 26, 2019 through the date of preliminary approval. Accordingly, the revised proposed order should provide that if the 10% threshold is exceeded and Defendant elects to truncate the Class Period rather than increase the gross settlement, the parties must obtain Court approval of the revised Class Period and corresponding notice before notice is mailed. The Class definition should not be altered administratively after preliminary approval without further Court review.

4. **Supplemental Declaration.** A supplemental declaration stating the estimated number of PAGA Members and estimated average PAGA payment, the litigation costs incurred to date, and clarifying Oscar Gomez's employment dates. The Complaint and FAC allege that Oscar Gomez worked for Defendant from approximately November 2022 to November 2023. (Complaint, ¶ 7; FAC, ¶ 8.) His supporting declaration instead states that he worked for Defendant from approximately January 2015 to November 2023. (Oscar Gomez Decl., ¶ 3.) Either period places him squarely within the proposed Class Period, so the inconsistency does not presently defeat typicality or adequacy, but Plaintiffs should correct or explain it in their supplemental filing.
5. **Settlement Administrator.** The submitted proposal is expired. An updated Phoenix Settlement Administrators bid or confirmation that Phoenix will perform the administration for no more than \$8,000; and
6. **Compliance with Code of Civil Procedure section 384.** A proposed cy pres recipient under Code of Civil Procedure section 384, or an explanation supporting the proposed treatment of uncashed checks through the State Controller's Unclaimed Property Division.
7. **Revised Proposed Order.** A revised proposed order to accord with the changes that also details a timeline for final approval and a proposed date on a Wednesday at 1:30 p.m.;

The Court otherwise finds the settlement sufficiently supported for purposes of preliminary review and does not require Plaintiffs to rebrief the valuation of the underlying claims unless the settlement terms materially change.

The Motion for Preliminary Approval of Class Action and PAGA Settlement is CONTINUED to **Wednesday November 25, 2026**, at 1:30 p.m. in Department 44

Plaintiffs' counsel shall give notice.